

24STLC02435 24STLC02435

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Case Number: 24STLC02435 Hearing Date: August 20, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Hash-Ulzii Erdenekhuu's Motion for Award of Attorney's Fees is granted in the amount of \$79,020.00

Analysis:

Plaintiff Hash-Ulzii Erdenekhuu ("Plaintiff Erdenekhuu") filed the instant action for breach of contract against Defendant Hu Trans, LLC ("Defendant Hu Trans") on April 3, 2024. On May 16, 2024, Defendant Hu Trans filed a Cross-Complaint against Plaintiff Erdenekhuu and EZH, Inc. (Cross-Defendants").

On July 25, 2024, the Court sustained Plaintiff Erdenekhuu's Demurrer to the second cause of action in the Cross-Complaint and deemed its Motion to Strike Portions of the Cross-Complaint moot. (Minute Order, 07/25/24.) Defendant Hu Trans filed the First Amended Cross-Complaint on August 14, 2024. On October 15, 2024, the Court sustained Plaintiff Erdenekhuu's Demurrer to the second cause of action in the First Amended Complaint without leave to amend, leaving only one cause of action for breach of contract against Cross-Defendant EXH at issue in the Cross-Complaint. (Minute Order, 10/15/24.)

On April 17, 2025, the Court granted Cross-Defendant EZH's Motion to Compel Defendant Hu Trans' Attendance at Deposition, Request for Monetary Sanctions. (Minute Order, 04/17/25.) Cross-Defendant EZH filed a Motion for Summary Judgment, or in the alternative, Summary Adjudication on May 23, 2025. On August 7, 2025, Cross-Defendant EZH also filed a Motion for Leave to Amend Answer to the First Amended Cross-Complaint.

The Motion for Summary Judgment, or in the alternative, Summary Adjudication, came for hearing on August 20, 2025, and was denied. (Minute Order, 08/20/25.) The Court granted Cross-Defendant EZH's Motion for Leave to Amend Answer on September 23, 2025. (Minute Order, 09/23/25.)

On November 18, 2025, the Court granted Defendant Hu Trans' ex parte application to continue the trial date and set it for January 20, 2026. (Minute Order, 11/18/25; Clerk's Certificate of Service, 11/18/25.) On January 20, 2026, the date was again continued to February 19, 2026, with all parties appearing through counsel and waiving notice of the order. (Minute Order, 01/20/26.) On February 19, 2026, counsel for Plaintiff Erdenekhuu and Cross-Defendant EZH and counsel for Defendant Hu Trans both appeared and upon the completion of the trial the following day, the Court ordered judgment for Plaintiff in the amount of \$24,000.00 principal and interest of \$5,608.76, and against Defendant Hu Trans on its Cross-Complaint. (See Minute Order, 02/20/26; Judgment, 03/26/2026.)

Defendant Hu Trans, in propria persona, filed a Motion to Set Aside/Vacate Judgment on March 19, 2026. The Judgment was entered on March 26, 2026. The Court denied the Motion to Set Aside on April 14, 2026, and granted Attorney William Hanley's Motion to be Relieved as Counsel for Defendant Hu Trans on April 29, 2026. On April 24, 2026, Defendant Hu Trans filed a Motion for Reconsideration of Order Denying Motion to Vacate Judgment through Attorney Michael S. Lee. Plaintiff Erdenekhuu filed and served the instant Motion for Attorney's Fees on May 21, 2026. The Court denied the Motion for Reconsideration on July 29, 2026. (Minute Order, 07/29/26.) No opposition to the instant Motion for Attorney's Fees has been filed to date.

Discussion

Timeliness of Motion for Attorney's Fees

A motion for attorney's fees must be filed and served within the time for filing a notice of appeal under Cal. Rules of Court Rule 8.822. (Cal. Rules of Court, rule 3.1702(a).) Applying that rule, an attorneys' fees motion must be filed within the earlier of (1) 30 days after the trial court clerk serves the moving party with notice of entry of judgment; (2) 30 days after the moving party serves or is served by a party with a document entitled "Notice of Entry" of judgment or a file-endorsed copy of the judgment, accompanied by proof of service; or (3) 90 days after entry of judgment. (Cal. Rules of Court, rule 8.822(1).) The time to appeal is extended by Rule 8.823 when a motion to vacate judgment is filed. (Cal. Rules of Court, rules 8.823(c).) In this case, Defendant first filed a Motion to Set Aside/Vacate Judgment. Under California Rules of Court, rule 8.823(c), the filing of a valid motion to vacate the judgment extends the time to appeal to the earlier of:

(1) 15 days after the trial court clerk or a party serves an order denying the motion or a notice of entry of that order;

(2) 45 days after the first notice of intention to move or motion is filed; or

(3) 90 days after entry of judgment.

(Cal. Rules of Court, rule 8.823(c).) 90 days after entry of judgment on March 26, 2026 was June 24, 2026. 45 days after the filing of Defendant's Motion to Set Aside/Vacate Judgment on March 19, 2026 was May 3, 2026. Finally, 15 days after the Court served notice of its ruling denying the Motion to Set Aside/Vacate Judgment on April 14, 2026, was April 29, 2026. The earliest of those dates was April 29, 2026, making the deadline to file a motion for attorney's fees May 29, 2026. Therefore, the Motion was timely filed on May 21, 2026.

Entitlement to Attorney's Fees as Prevailing Party

Plaintiff Erdenekhuu brings the instant Motion pursuant to Code of Civil Procedure section 1032 and Civil Code section 1717. A prevailing party is entitled to recover costs, including attorneys' fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1032, subd. (a)(4); § 1033.5, subd. (a)(10).) Plaintiff Erdenekhuu moves for attorney's fees pursuant to a provision of the Loan Agreement that formed the basis for Plaintiff Erdenekhuu's breach of contract claim against Defendant Hu Trans. (See Motion, Hardacre Decl., Exh. 1.) In the Agreement, Defendant Hu Trans as "Borrower" agreed to pay back a loan in the sum of \$24,000 made by Erdenekhuu, as "Lender". That provision states in relevant part that "[t]he Borrower shall be liable for all costs, expenses and expenditures incurred including, without limitation, the complete legal costs of the Lender incurred by enforcing this Agreement as a result of any default by the Borrower...." (Motion, Hardacre Decl., Exh. 1, ¶6.) This provision entitles Plaintiff Erdenekhuu to recover its attorney's fees incurred in this action to enforce the loan agreement. (Civ. Code, § 1717(a).) Under Code of Civil Procedure section 1032(a), as the party in whose favor judgment was entered against Defendant Hu Trans, Plaintiff Erdenekhuu is the prevailing party. (See Code Civ. Proc., § 1032, subd. (a)(4).)

Calculation of Attorney's Fees Amount

The moving party bears the burden of proof with respect to attorney's fees. (Code Civ. Proc., § 1033.5, subd. (c)(5)(A).) Specifically, a party seeking fees has the burden of showing the fees incurred are "allowable," are "reasonably necessary to the conduct of the litigation," and are "reasonable in amount." (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.)

The Court's objective is to award attorney's fees at the fair market value based on the particular action. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate" (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1134.) The lodestar method is based on the factors, as relevant to the particular case: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Id. at 1132.) "The 'experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.'" (Id.) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)

The Motion seeks \$87,800.00 in attorney's fees based on time spent by 165.66 hours spent by Plaintiff's counsel at \$500.00 an hour. (Motion, Hardacre Decl., ¶¶9-11 and Exh. 5.) The hourly rate is supported by counsel's declaration attesting to being a practicing attorney since 2007, with extensive experience in trial and complex litigation. (Id. at ¶12.) This rate is below the market rate for an attorney with similar experience, and less than what Plaintiff's counsel usually charges. (Id. at ¶13.)

Plaintiff breaks down the time spent on this action as 83 hours spent prosecuting the Complaint, 30.9 hours defending Defendant's cross-complaints, 20.5 hours on discovery disputes, 16 hours defending an ex parte application to continue trial and the Motion to Set Aside/Vacate Judgment, and 16 hours on post-judgment matters like preparing the memorandum of costs, the proposed judgment, and the instant Motion for Attorney's Fees. (Ibid.)

The time claimed is corroborated by the procedural history of the case as recounted above, and through the supporting declaration of Plaintiff's counsel, the breakdown of time spent, and the attached billing records. However, the Court will not award attorney fees for time incurred on behalf of Cross-Defendant EZH, which was not a party to the Loan Agreement, and is not the "Lender" entitled to recover its costs under that Agreement. The invoices attached as Exhibit 5 appear to exclude charges for work performed on behalf of Cross-Defendant EZH, such as for example, work performed on the motion for summary judgment and the motion for leave to amend the Answer, which are not included in the attached invoices, with the exception of a grouped entry on 9/12/2024 that reflected work on Cross-Defendant EZH's Answer. (Id., Exh. 5, p. 41.) Some of the fees claimed, however, include responses to discovery propounded by Cross-Defendant EZH and the motion to compel deposition, which was filed by Cross-Defendant EZH, and thus clearly represent work on behalf of both parties. (See e.g., id., Exh. 5, p.39, 47, 51, 53, 61.) The allegations against both cross-defendants in the Cross-Complaint are interrelated; discovery responses to one or the other and the deposition of Defendant's representative would necessarily benefit both parties. The Court is not required to attempt to allocate fees between the parties in that circumstance. (See Cruz v. Ayromloo (2007) 155 Cal. App. 4th 1270, 1277) ("Allocation of fees incurred in representing multiple parties is not required when the liability of the parties is 'so factually interrelated that it would have been impossible to separate the activities ... into compensable and noncompensable time units.'") However, the Court will apply a ten-percent reduction to account for any work in the amounts claimed that applied exclusively to Cross-Defendant EZH, such as discovery specific to that party. (See Cruz, 155 Cal. App. 4th at 1274 (trial court applied 20% reduction "to account for legal fees incurred for work done specifically for the other tenants" even after moving party represented it had apportioned the fees).)

With that reduction, the Motion demonstrates that the time billed was reasonable and necessary to this action in light of Defendant's vigorous defense and cross-actions.

In light of the reasonable hourly rate and time billed, the Court awards Plaintiff the attorney's fees requested in the amount of \$87,800.00, reduced by ten percent to a total award of \$79,020.00

Conclusion

Plaintiff Hash-Ulzii Erdenekhuu's Motion for Award of Attorney's Fees is granted in the amount of \$79,020.00.

Moving party to give notice.